

CONTRACTLENS ANALYSIS SUMMARY REPORT

Report Generated: 2026-06-27 02:02:03 | Contract Profile: Indian Institute of Technology Kanpur (IITK)

1. CONTRACT PARAMETERS PROFILE

Effective Date:	Not Specified
Duration:	2 Years
First Party (Client):	Indian Institute of Technology Kanpur (IITK)
Second Party (Contractor):	Service provider
Jurisdiction / Law:	Not Specified

2. DETECTED RISK & NEGOTIATION REDLINES

[1] 4.0 Employment of workmen by the Service provider (Page 12) - High RISK

Risk Type: Unilateral authority clauses | Criticality: 9/10 | Confidence: 95.0%

Legal Rationale: This clause grants the Institute (through the Warden) unilateral authority to demand the removal of the service provider's employees without requiring any justification or allowing the service provider to question the decision. This significantly restricts the service provider's autonomy in managing its workforce and could lead to disputes or compliance issues if an employee's removal is not legally sound.

Simple Explanation: The Institute can force the service provider to remove any employee without giving a reason or allowing the service provider to object, which gives the Institute too much control over the service provider's staff.

Recommended Action: Negotiate to require that any demand for employee removal be based on objective, demonstrable reasons (e.g., documented misconduct, health risks, security concerns) and include a clear process for investigation, substantiation, and an opportunity for the service provider to address the issue before final removal. Align with applicable labor laws for employee termination.

[2] 4.0 Employment of workmen by the Service provider (Page 12) - High RISK

Risk Type: Liability transfer, Financial penalties, Unilateral authority clauses, Security deposit deductions | Criticality: 9/10 | Confidence: 95.0%

Legal Rationale: This clause imposes a broad liability on the service provider for 'loss of any nature' and grants the Institute 'sole discretion' to determine the loss amount and unilaterally recover it from dues or the security deposit. This lacks transparency and a fair dispute mechanism, potentially leading to arbitrary charges.

Simple Explanation: The Institute can decide by itself how much money the service provider owes for any damages, and take that money directly from payments or the security deposit, without the service provider being able to challenge it easily.

Recommended Action: Negotiate for a clear process for assessing and agreeing upon losses, including a right for the service provider to dispute the claimed loss amount. Require independent verification or mutual agreement on the extent of loss before any deductions are made.

[3] 4.0 Employment of workmen by the Service provider (Page 13) - High RISK

Risk Type: Indemnity clauses, Unilateral termination, Binding obligations, Compliance obligations | Criticality: 9/10 | Confidence: 95.0%

Legal Rationale: This clause imposes a broad indemnity obligation on the service provider for 'any action brought against' the Institute due to the service provider's non-compliance with 'any of the acts, etc.' and allows for 'immediate termination' for such non-compliance. This is a significant risk, as it makes the service provider financially responsible for all legal costs and damages incurred by the Institute, regardless of culpability or severity, and allows for immediate termination without a cure period.

Simple Explanation: The service provider has to pay for any legal problems the Institute faces because of the service provider's rule-breaking, and the contract can be immediately ended if any rule is broken.

Recommended Action: Limit the indemnity to direct losses caused by the service provider's gross negligence or willful misconduct. Introduce a reasonable cure period for non-material breaches before termination. Ensure the scope of 'acts, etc.' is clearly defined. The service provider should only be liable for direct and foreseeable damages.

[4] 6.5 Interpretation of Contract Documents : (Page 19) - High RISK

Risk Type: Dispute restrictions, Unilateral authority clauses, Binding obligations | **Criticality:** 9/10 | **Confidence:** 95.0%

Legal Rationale: This clause grants the Warden final and conclusive authority to decide on any discrepancies, inconsistencies, errors, or omissions in the contract documents, effectively removing any impartial dispute resolution mechanism for contractual interpretation. This places the service provider at a significant disadvantage as the Institute's representative has absolute say in how the contract is understood and executed.

Simple Explanation: If there's any confusion or mistake in the contract, the Warden's decision is final and cannot be challenged, giving the Institute total control over how the contract is interpreted.

Recommended Action: Negotiate for a more balanced dispute resolution process for interpretation issues, such as referral to a mutually agreed-upon third-party expert or an independent arbitration process, rather than vesting final and conclusive authority in one party's representative.

[5] 6.5 Interpretation of Contract Documents : (Page 19) - High RISK

Risk Type: Scope creep risks, Unilateral authority clauses, Binding obligations | **Criticality:** 9/10 | **Confidence:** 95.0%

Legal Rationale: This clause allows the Institute (through the Warden) to unilaterally define the 'finer details' of the scope of work during execution, despite the scope being 'broadly defined'. This exposes the service provider to potential scope creep without a clear mechanism for corresponding adjustments in compensation, timelines, or resources.

Simple Explanation: The contract says the work is only generally described, and the Institute can add more details later, which means the service provider might have to do more work than expected without extra pay.

Recommended Action: Require that any 'finer details' or changes to the broadly defined scope that result in additional work, cost, or time for the service provider be subject to mutual agreement and formal change orders with appropriate adjustments to the contract value and timeline.

[6] 6.5 Interpretation of Contract Documents : (Page 19) - High RISK

Risk Type: Scope creep risks, Binding obligations, Liability transfer | **Criticality:** 9/10 | **Confidence:** 95.0%

Legal Rationale: This clause places the entire risk and responsibility for any errors, omissions, or defects in the contract documents onto the service provider, deeming them to have full knowledge of all required work regardless of deficiencies. This can force the service provider to perform additional, uncompensated work that was not explicitly detailed or reasonably foreseeable.

Simple Explanation: The service provider is expected to know everything about the work, even if the contract documents have mistakes or leave things out, meaning they might have to do extra work for free.

Recommended Action: Negotiate to limit this clause by specifying that the service provider is only responsible for what is reasonably inferable from the documents provided. Significant omissions or errors identified after contract signing should trigger a change order process, allowing for adjustments to rates and timelines.

[7] 6.5 Interpretation of Contract Documents : (Page 20) - High RISK

Risk Type: Financial penalties, Security deposit deductions, Hidden penalties, Binding obligations | **Criticality:** 9/10 | **Confidence:** 95.0%

Legal Rationale: This clause grants the Institute a broad right to deduct 'All compensation or other sums of money payable by the service provider to the Institute' from the security deposit or other dues. It also mandates the service provider to replenish the security deposit within a short 10-day period, imposing further penalties (interest as per 6.6) if they fail to do so. This mechanism is highly unilateral and punitive.

Simple Explanation: The Institute can take any money the service provider owes directly from their security deposit or other payments. If the security deposit gets lower, the service provider must replace the money within 10 days or face extra charges.

Recommended Action: Require a pre-deduction notification and a reasonable period for the service provider to dispute the claim before any funds are deducted. Extend the security deposit replenishment period and link it to a clear, agreed-upon basis for deductions, rather than unilateral assessment.

[8] 7.14 Arbitration: (Page 27) - High RISK

Risk Type: Arbitration risks, Dispute restrictions, Unilateral authority clauses | **Criticality:** 9/10 | **Confidence:** 95.0%

Legal Rationale: This clause specifies that a 'Sole Arbitrator' will be appointed by the 'Deputy Director of the Institute' at the time of the dispute. This raises serious concerns about the impartiality and independence of the arbitrator, as one party (the Institute) unilaterally controls the appointment process. Furthermore, the restriction on challenging jurisdiction 'after the award has been made' limits the service provider's legal recourse.

Simple Explanation: The Institute gets to choose the only person who will resolve any disagreements, which means that person might not be neutral. Also, once the decision is made, the service provider can't challenge the arbitrator's authority.

Recommended Action: Negotiate for a neutral mechanism for arbitrator appointment, such as selection by mutual agreement, appointment by an independent arbitration institution (e.g., Indian Council of Arbitration), or a process where each party nominates an arbitrator. Remove or clarify the restriction on challenging jurisdiction to comply with standard arbitration law principles.

[9] 7.3 Force Majeure: (Page 24) - High RISK

Risk Type: Unilateral termination, Force majeure risks, Payment risks | **Criticality:** 9/10 | **Confidence:** 95.0%

Legal Rationale: This clause grants the Institute a unilateral option to cancel the contract 'at its own discretion' if force majeure conditions last for more than one month, without a reciprocal right for the service provider. Furthermore, it explicitly states that 'no amount shall be payable to the service provider' for the period of force majeure, shifting the entire financial burden of such events, including potential operational and demobilization costs, onto the service provider.

Simple Explanation: If a force majeure event (like a flood or war) lasts for over a month, the Institute can choose to cancel the contract without compensation to the service provider. The service provider also won't get paid for anything during that force majeure period.

Recommended Action: Negotiate for mutual termination rights after a specified period of force majeure. Include provisions for fair compensation for work completed and unavoidable costs incurred by the service provider (e.g., demobilization, employee retention costs) if the Institute exercises its termination option. Clarify that time extensions for bona fide force majeure events are automatic and commensurate with the delay.

[10] 3.4 (Page 8) - High RISK

Risk Type: Payment risks, Binding obligations, Financial penalties, Conflicting obligations | **Criticality:** 8/10 | **Confidence:** 90.0%

Legal Rationale: This clause imposes a strict cap on raw material cost increases that the service provider must absorb (Rs. 3/- per student per day for one year). While clause 3.6 mentions that the Institute 'may consider revision' for 'considerable price variation,' this consideration is discretionary, leaving the service provider exposed to significant financial losses if market prices increase beyond the cap and the Institute chooses not to revise the price.

Simple Explanation: The service provider must absorb any increase in raw material costs beyond Rs. 3/- per day for a year. Although the Institute might consider price revisions for big market changes, it's not guaranteed, meaning the service provider could lose money if prices go up a lot.

Recommended Action: Negotiate for a clearer and more frequent mechanism for price adjustments based on verifiable market indices for raw materials, especially for contracts longer than short-term or in volatile markets. Ensure revisions are mandatory, not discretionary, if a certain threshold of price increase is met.

[11] 3.4 (Page 8) - High RISK

Risk Type: Financial penalties, Unilateral authority clauses | **Criticality:** 8/10 | **Confidence:** 90.0%

Legal Rationale: This clause grants the HEC broad authority to impose an 'appropriate fine' for various issues without defining what constitutes 'appropriate' or providing a clear fine schedule. This subjectivity can lead to arbitrary or disproportionate penalties without a fair process for the service provider to dispute them.

Simple Explanation: The HEC can give the service provider 'appropriate fines' for many reasons without saying exactly what the fines will be or how they are decided, which could lead to unfair penalties.

***Recommended Action:** Establish a clear, detailed fine schedule with specific amounts or calculation methods for identified breaches. Introduce a notice and cure period for remediable issues and a formal process for the service provider to dispute fines.*

[12] 3.4 (Page 11) - High RISK

Risk Type: Financial penalties, Unilateral termination | **Criticality:** 8/10 | **Confidence:** 90.0%

Legal Rationale: This clause states that violation of the food provision rules 'will attract penalties and may lead to the termination of the contract'. The lack of specificity regarding the nature or severity of 'penalties' and the possibility of termination for any violation, regardless of its materiality, creates significant risk for the service provider, especially without a cure period.

Simple Explanation: Breaking the rules about selling or providing food can result in unspecified penalties and even the contract being ended immediately, even for small mistakes.

***Recommended Action:** Specify a graduated penalty system for first-time or minor violations, and require a notice and reasonable cure period before termination for all but the most egregious or repeated breaches.*

[13] ARTICLE-5 (Page 15) - High RISK

Risk Type: Payment risks, Binding obligations | **Criticality:** 8/10 | **Confidence:** 90.0%

Legal Rationale: This clause stipulates that service rates are fixed for the entire contract period with very limited exceptions (minimum wage or significant student number changes). This rigid structure exposes the service provider to financial losses if other operational costs (e.g., fuel, utilities, other supplies, non-minimum wage labor costs) increase significantly over the contract term, as there is no mechanism for adjustment.

Simple Explanation: The service charges are fixed for the entire contract, except for minimum wage changes or large changes in student numbers. This means if other costs go up, the service provider cannot increase their rates to cover them.

***Recommended Action:** Negotiate for an annual indexation clause to account for general inflation or a broader range of verifiable cost escalations (e.g., fuel, electricity, other statutory levies beyond minimum wages) to ensure the service provider's financial viability throughout the contract term.*

[14] ARTICLE-5 (Page 16) - High RISK

Risk Type: Dispute restrictions, Binding obligations | **Criticality:** 8/10 | **Confidence:** 90.0%

Legal Rationale: This clause imposes an extremely short one-week deadline for the submission of 'Any claim or compensation for any cause whatsoever'. This timeframe is often impractical for proper documentation, assessment, and formal submission of claims, potentially leading to the forfeiture of legitimate claims due to procedural oversight or insufficient time.

Simple Explanation: Any claim for money or problems must be made within one week of the event, which is a very short time and might prevent the service provider from getting paid for valid claims if they miss the deadline.

***Recommended Action:** Extend the claim submission period to a more reasonable timeframe (e.g., 30 days) to allow adequate time for investigation and documentation. For ongoing issues, allow for periodic submission of cumulative claims.*

[15] 6.2 Termination: (Page 17) - High RISK

Risk Type: Unilateral termination, Unilateral authority clauses | **Criticality:** 10/10 | **Confidence:** 95.0%

Legal Rationale: This clause grants the Institute an exceptionally broad and discretionary power to terminate the contract 'for any reason' and 'without assigning any reasons thereof' with a potentially reduced notice

period 'Under exceptional circumstances'. This is highly unfavorable to the service provider, as it provides no cause-based protection against termination and eliminates the ability to address or dispute the basis for termination.

Simple Explanation: The Institute can end the contract at any time, for any reason, without explaining why, and sometimes with very little notice. This leaves the service provider very vulnerable.

Recommended Action: Strongly negotiate to limit termination rights to specific, material breaches of contract by the service provider, with a clearly defined notice and cure period. Remove the 'for any reason' and 'without assigning any reasons thereof' clauses for termination to ensure fairness and predictability. Define 'exceptional circumstances' precisely if the notice period can be reduced.

[16] 6.1 Security Deposit: (Page 17) - High RISK

Risk Type: Security deposit deductions, Financial penalties, Unilateral authority clauses, Conflicting obligations | **Criticality:** 9/10 | **Confidence:** 95.0%

Legal Rationale: This clause gives the Institute an 'unqualified option to forfeit' the entire security deposit for 'any of its commitments' or 'any amount due'. This is an extremely broad and potentially punitive provision, lacking proportionality and a clear mechanism for dispute. When combined with 6.5.10 and 6.6, it creates a layered and unilateral financial penalty system. The distinction between 'forfeit' and 'deduct' can also lead to legal ambiguity.

Simple Explanation: The Institute can take all of the service provider's security deposit for any small failure or any money owed, without needing to justify it. This is a very powerful and potentially unfair right for the Institute.

Recommended Action: Limit forfeiture to material breaches or specific, quantified damages. Require prior notice, an opportunity to cure the breach, and a fair assessment of damages before any forfeiture. Establish a clear, unified process for security deposit deductions/forfeitures that includes notification, an opportunity to dispute, and proportional application of penalties.

[17] 7.0 Service provider's Subordinate Staff and their Conduct: (Page 22) - High RISK

Risk Type: Unilateral authority clauses, Binding obligations | **Criticality:** 9/10 | **Confidence:** 95.0%

Legal Rationale: This clause grants the Warden unilateral, unchallengeable power to reject 'any or all the names' of the service provider's workers 'without assigning any reason'. This significantly interferes with the service provider's operational autonomy and ability to staff the mess, potentially impacting service quality or leading to labor disputes if qualified personnel are arbitrarily rejected.

Simple Explanation: The Warden can refuse any of the service provider's workers without needing to give a reason, meaning the service provider might not be able to hire or keep the staff they need to run the mess.

Recommended Action: Require that any rejection of personnel be based on reasonable, objective criteria (e.g., failed background checks, documented prior misconduct, clear health concerns). Reasons for rejection should be provided to the service provider to ensure transparency and allow for discussion or remediation.

[18] 7.0 Service provider's Subordinate Staff and their Conduct: (Page 22) - High RISK

Risk Type: Unilateral authority clauses, Liability transfer, Compliance obligations, Binding obligations | **Criticality:** 9/10 | **Confidence:** 95.0%

Legal Rationale: This clause allows the Warden to demand the removal of any service provider's employee based on subjective 'opinion' (e.g., 'undesirable for administrative or any other reason'), and explicitly states the service provider must bear all costs related to removal and repatriation. This severely impacts the service provider's employment control, creates significant financial exposure for potentially arbitrary removals, and could lead to labor law challenges if removals are not justifiable under employment laws.

Simple Explanation: The Warden can demand that the service provider remove any employee based on their personal opinion, even if there's no clear fault. The service provider then has to pay all costs for removing or sending that employee home, which can be expensive and unfair.

Recommended Action: Require objective and demonstrable grounds for employee removal (e.g., documented misconduct, poor performance, security risk) and a process for the service provider to investigate or appeal. Seek to limit the service provider's financial liability for repatriation or removal to cases of proven gross misconduct by the employee or clear breach of contract by the service provider.

[19] 7.0 Service provider's Subordinate Staff and their Conduct: (Page 23) - High RISK

Risk Type: Liability transfer, Indemnity clauses, Binding obligations | **Criticality:** 9/10 | **Confidence:** 95.0%

Legal Rationale: This clause imposes an extremely broad responsibility on the service provider for the 'proper behavior of all the staff, employed directly or indirectly' and requires them to 'relieve the Institute of all consequent claims or actions for damages or injury or on any the other grounds whatsoever'. This is an exceptionally wide indemnity and liability transfer, potentially making the service provider responsible for unforeseeable actions of third parties or beyond what is commercially insurable.

Simple Explanation: The service provider is entirely responsible for everything all staff do, directly or indirectly, and must protect the Institute from any resulting legal claims or damages. This is a huge responsibility that might be impossible to fully control or insure.

Recommended Action: *Limit responsibility and indemnity to actions within the scope of employment and directly attributable to the gross negligence or willful misconduct of the service provider's employees. Define 'proper behavior' and establish a clear reporting and resolution process for behavioral issues. Seek to cap the indemnification amount.*

[20] 7.2 Power of Entry: (Page 23) - High RISK

Risk Type: Unilateral termination, Financial penalties, Unilateral authority clauses, Liability transfer, Hidden penalties, Binding obligations, Security deposit deductions | **Criticality:** 10/10 | **Confidence:** 95.0%

Legal Rationale: This clause grants the Institute sweeping and unilateral powers upon perceived default by the service provider. It allows the Institute to rescind the contract, take possession of premises and materials (with payments only for what the Warden deems 'reasonable'), deduct 'excess' costs determined unilaterally by the Warden from any sums due, and even sell the service provider's materials to recover deficiencies. The triggers for these actions are broad and subjective ('in the opinion of the Warden', 'to the satisfaction of the Warden'), creating extreme operational and financial risk without adequate due process or dispute resolution.

Simple Explanation: If the Institute believes the service provider is not meeting the contract terms (even based on the Warden's opinion), the Institute can immediately take over the premises, seize materials without fair payment, end the contract, charge the service provider for extra costs as they see fit, and sell the service provider's equipment to cover those costs. This gives the Institute almost unlimited power.

Recommended Action: *Strongly negotiate to: 1) clearly define objective criteria for breaches; 2) require a reasonable cure period for all breaches before termination; 3) establish a neutral valuation process for any seized materials; 4) ensure a transparent accounting and mutual agreement for recovery of costs, rather than unilateral determination and asset sale; 5) limit triggers for such actions to material and uncured breaches.*

[21] 7.7 Schedule of Rates to be Inclusive: (Page 25) - High RISK

Risk Type: Scope creep risks, Binding obligations, Unilateral authority clauses, Payment risks, Liability transfer | **Criticality:** 10/10 | **Confidence:** 95.0%

Legal Rationale: This is an extremely onerous clause that combines several highly unfavorable elements. It deems the service provider to have complete knowledge of all work requirements, regardless of contract document deficiencies, and makes the Warden's subjective opinion on 'necessary and reasonable' work 'final and binding' without additional payment. It explicitly states that the 'generality of this provision shall not be deemed to be cut down', effectively forcing the service provider to perform potentially extensive uncompensated work based on the Institute's unilateral interpretation and subjective assessment of scope.

Simple Explanation: The service provider is expected to know all work details, even if not fully written in the contract. The Warden can decide what extra work is 'necessary' without offering more pay, and the service provider must do it. This means the service provider could end up doing a lot more work for free.

Recommended Action: *Strongly negotiate to limit this clause. The service provider should only be responsible for work reasonably inferable from the contract documents as provided. Any work deemed 'necessary and reasonable' by the Warden that was not explicitly detailed and results in additional cost or time should be subject to a formal change order process and mutual agreement on compensation and timeline. Remove the 'Warden's opinion...shall be final and binding' aspect for cost-impacting work.*

3. AUTOMATED GAP AUDIT (MISSING TERMS)

[1] Intellectual Property Rights - Severity: HIGH

Plain English Translation: This clause clarifies who owns the 'smart stuff' - like recipes, special software, or unique ways of doing things - that might be created or used during the service. Without it, there could be arguments later about who has the right to use these ideas, which could cost money or limit what the Institute can do after the service provider leaves.

Suggested Draft Clause:

ARTICLE · Intellectual Property Rights

1. Ownership of Intellectual Property

1.1. The Service Provider acknowledges and agrees that all Intellectual Property Rights (including, but not limited to, invention, copyrights, trademarks, trade secrets, and patents) in all materials, documents, reports, software, processes, systems, recipes, menus, operational manuals, and any other deliverables or work developed, created, or provided by the Service Provider specifically for the Institute under this Contract ('Deliverables') shall be owned exclusively by the Institute upon their creation. The Service Provider shall assign all such Intellectual Property Rights to the Institute.

1.2. The Service Provider shall ensure that it has all necessary rights, licenses, and permissions to use any third-party Intellectual Property Rights incorporated into the Deliverables or used in the performance of its services, and shall indemnify the Institute against any claims arising from infringement of such rights.

1.3. The Service Provider shall retain ownership of its pre-existing Intellectual Property Rights, including tools, methodologies, or software developed independently of this Contract ('Service Provider IP'). To the extent Service Provider IP is incorporated into the Deliverables or necessary for the Institute's use of the Deliverables, the Service Provider grants the Institute a perpetual, irrevocable, worldwide, royalty-free, non-exclusive license to use, reproduce, modify, and distribute such Service Provider IP for its internal operational purposes.

[2] Data Privacy & Confidentiality Regulations - Severity: HIGH

Plain English Translation: This clause makes sure that any private information about students or the Institute (like names, meal preferences, or operational details) is kept secret and protected. Without it, there's a high risk that this information could be misused, stolen, or accidentally exposed, leading to legal trouble and trust issues.

Suggested Draft Clause:

ARTICLE · Data Privacy and Confidentiality

1. Confidentiality Obligations

1.1. The Service Provider shall keep confidential all information, data, documents, and materials, whether technical, business, financial, or personal, provided by the Institute or accessed by the Service Provider during the performance of this Contract ('Confidential Information'). This includes, but is not limited to, student records, dietary information, operational procedures, and financial data.

1.2. The Service Provider shall not disclose, reproduce, or use Confidential Information for any purpose other than the performance of its obligations under this Contract. The Service Provider shall limit access to Confidential Information to its employees, agents, and subcontractors who have a 'need to know' and are bound by confidentiality obligations no less stringent than those set forth herein.

2. Data Protection

2.1. The Service Provider acknowledges its responsibility to comply with all applicable data protection regulations concerning any personal data it processes on behalf of the Institute. The Service Provider shall implement and maintain appropriate technical and organizational measures to ensure the security, integrity, and confidentiality of personal data, protecting it against unauthorized or unlawful processing and against accidental loss, destruction, or damage.

2.2. In the event of any actual or suspected data breach involving Confidential Information or personal data, the Service Provider shall immediately notify the Institute, provide full details of the breach, and cooperate fully with the Institute in investigating and mitigating the breach. The Service Provider shall not disclose the breach to data subjects or regulatory authorities without the Institute's prior written consent.

2.3. Upon termination or expiration of this Contract, the Service Provider shall, at the Institute's request, promptly return or securely destroy all Confidential Information and personal data, and certify such destruction to the Institute.

[3] Mutual Termination for Convenience - Severity: HIGH

Plain English Translation: This clause allows either the Institute or the service provider to end the contract early, even if nothing has gone wrong, as long as they give enough notice. Without it, both parties might be stuck in an agreement that no longer works for them, which could lead to expensive legal problems if they try to leave.

Suggested Draft Clause:

ARTICLE · Termination

1. Termination for Convenience

1.1. Either party may terminate this Contract for its convenience, without cause, by providing not less than ninety (90) days' prior written notice to the other party.

1.2. In the event of termination for convenience by the Institute, the Institute shall pay the Service Provider for all services satisfactorily rendered and expenses reasonably incurred up to the effective date of termination, in accordance with the payment terms of this Contract. The Institute shall not be liable for anticipatory profits or consequential damages arising from such termination.

1.3. In the event of termination for convenience by the Service Provider, the Service Provider shall cooperate fully with the Institute to ensure an orderly transition of services to the Institute or a successor service provider, minimizing disruption to the Institute's operations. The Service Provider shall be paid for services satisfactorily rendered up to the effective date of termination, subject to any set-offs due to damages incurred by the Institute for an untimely or disruptive termination.

[4] Dispute Resolution and Escalation - Severity: HIGH

Plain English Translation: This clause sets out a clear step-by-step process for solving disagreements. Instead of immediately going to court, it suggests talking it out, then bringing in a neutral third party (mediation) to help find a solution. This saves both parties time, money, and stress.

Suggested Draft Clause:

ARTICLE · Dispute Resolution

1. Amicable Resolution

1.1. In the event of any dispute, controversy, or claim arising out of or relating to this Contract, its breach, termination, or invalidity thereof ('Dispute'), the parties shall first attempt to resolve the Dispute amicably through good-faith negotiations between their respective authorized representatives within thirty (30) days from the date one party notifies the other in writing of the Dispute.

2. Mediation

2.1. If the Dispute cannot be resolved through amicable negotiations within the aforementioned thirty (30) day period, either party may refer the Dispute to mediation. The mediation shall be conducted by a mutually agreed-upon mediator, or failing agreement within fifteen (15) days, by a mediator appointed by [Specify] a reputable mediation body, e.g., the Indian Council of Arbitration or a recognized legal professional. The costs of mediation shall be borne equally by both parties.

3. Arbitration

3.1. If the Dispute remains unresolved after sixty (60) days from the commencement of mediation, or party declines mediation, the Dispute shall be finally settled by binding arbitration in accordance provisions of the Arbitration and Conciliation Act, 1996 (as amended) of India.

3.2. The arbitration shall be conducted by a sole arbitrator appointed by mutual agreement of the pa failing agreement within thirty (30) days, by a sole arbitrator appointed by [Specify a reputable an institution, e.g., the Indian Council of Arbitration]. The seat and venue of arbitration shall be Ka The language of the arbitration shall be English.

3.3. The award rendered by the arbitrator shall be final and binding on both parties, and judgment t be entered in any court having jurisdiction.

[5] Subcontracting Restrictions - Severity: HIGH

Plain English Translation: This clause determines if the main service provider can hire other companies to do parts of the work, and under what conditions. Without it, the service provider could bring in unknown third parties, which might affect the quality of service, security, or even who is responsible if something goes wrong. It ensures the Institute knows who is ultimately providing the service.

Suggested Draft Clause:

ARTICLE · Subcontracting

1. Restrictions on Subcontracting

1.1. The Service Provider shall not subcontract, assign, or otherwise delegate any of its obligation under this Contract, in whole or in part, without the prior written consent of the Institute, which be withheld at the Institute's sole discretion.

1.2. If the Institute grants consent for subcontracting, the Service Provider shall remain fully res the performance of all its obligations under this Contract, notwithstanding any such subcontracting. omission of a subcontractor shall be deemed to be an act or omission of the Service Provider.

1.3. The Service Provider shall ensure that any approved subcontractor adheres to all terms and conc this Contract, including, but not limited to, confidentiality, data privacy, quality standards, and with all applicable laws and regulations. The Service Provider shall furnish the Institute with copi subcontracting agreements upon request.

4. INCOMPLETE PLACEHOLDERS LOCATOR

[1] Placeholder: " _____ " (Page 1)

Context: ... AND M/s _____ registered under _____ and having it's office at _____ (hereinafter referred to as ...

[2] Placeholder: " _____ " (Page 1)

Context: ... AND M/s _____ registered under _____ and having it's office at _____ (hereinafter referred to as The Service Provider which expression shall include his/their respective heirs, executors, ...

[3] Placeholder: " _____ " (Page 1)

Context: ... The Service Provider which expression shall include his/their respective heirs, executors, administrators and assignees), represented by _____ on the other part. ...

[4] Placeholder: " _____ " (Page 2)

Context: ... the General Conditions of the Contract. AND whereas the Service Provider has deposited a sum of Rs. _____ (____ lakhs only) as earnest money in the form of a Demand Draft No. _____ dated _____ issued by ...

[5] Placeholder: " _____ " (Page 2)

Context: ... AND whereas the Service Provider has deposited a sum of Rs. _____ (____ lakhs only) as earnest money in the form of a Demand Draft No. _____ dated _____ issued by _____ in favour of Hall Management, IIT Kanpur payable at UBI, I.I.T. ...

[6] Placeholder: " _____ " (Page 2)

Context: ... as earnest money in the form of a Demand Draft No. _____ dated _____ issued by _____ in favour of Hall Management, IIT Kanpur payable at UBI, I.I.T. Branch Kanpur as performance guarantee for the said work and has agreed that this be ...

[7] Placeholder: " _____ " (Page 2)

Context: ... AND whereas the Service Provider has promised to deposit Rs. _____ (____ lakhs only) as remaining part of the security deposit in the form of a Bank Draft latest by ...

[8] Placeholder: " _____ " (Page 2)

Context: ... only) as remaining part of the security deposit in the form of a Bank Draft latest by _____
...

[9] Placeholder: " _____ " (Page 3)

Context: ... _____ M/s _____ ...

[10] Placeholder: " _____ " (Page 3)

Context: ... 1 _____ ...

[11] Placeholder: " _____ " (Page 3)

Context: ... 2. _____ ...

[12] Placeholder: " ____ " (Page 6)

Context: ... 2.1 The Hall of Residence No.-__ is a ____s. Hostel situated inside the campus of the Institute with an exclusive and fully secured premise of its own. The ...

[13] Placeholder: " ____ " (Page 6)

Context: ... residents with a centrally located dining facility, administrative block, coffee shop, etc. The hostel is designed to accommodate a total of ____ students approximately with a minor variation. ...

[14] Placeholder: " _____ " (Page 8)

Context: ... keep the actual cost of the raw material including cooking fuel within a value of Rupees _____ only (Rs. _____) per student per day. This value should not go up by more than Rs. 3/- for a period of one ...

[15] Placeholder: "[s]" (Page 12)

Context: ... provider. If in the opinion of the Institute any of the service provider's employee [s] is found to be suffering from any such disease/condition or if any employee(s) of the service provider is found to have committed ...

[16] Placeholder: " _____ " (Page 15)

Context: ... The charges for providing operational services in the mess of Hall-__ shall be Rs. _____ (rupees _____ only) per month ...

[17] Placeholder: "[ten]" (Page 15)

Context: ... bills shall normally be for purchase of preceding two weeks. The Warden in- charge/Warden shall make efforts that the bills are paid within 10 [ten] working days of submission. The institute shall not be responsible for any ...

[18] Placeholder: " _____ " (Page 16)

Context: ... defined for purpose of Article 3.5, plus fixed cost, suitably rounded. This fixed cost shall be calculated by dividing Rs. _____/- by thirty times the number of students i.e. Rs. _____÷(number of students)X30. The coupon ...

[19] Placeholder: " _____ " (Page 16)

Context: ... fixed cost shall be calculated by dividing Rs. _____/- by thirty times the number of students i.e. Rs. _____÷(number of students)X30. The coupon cost may be modified from time to time by the institute. The service provider ...